

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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DARRELL HUNTER,

Plaintiff,

SUMMONS

-against-

CITY OF NEW YORK, POLICE OFFICER JOHN
LA PIERRE, POLICE OFFICER JOHN DOE #1,
POLICE OFFICER JOHN DOE #2 and POLICE
OFFICER JOHN DOE #3,

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

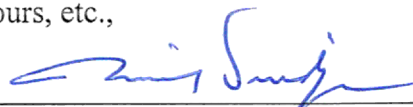
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Queens County as the place of trial.

The basis of the venue designated is the location of the incident.

Dated: Forest Hills, NY
July 1, 2021

Yours, etc.,



MICHAEL DREISHPOON, ESQ.
LAW OFFICES OF MICHAEL DREISHPOON
Attorney for Plaintiff
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

CITY OF NEW YORK

100 Church St.

New York, NY 10007

POLICE OFFICER JOHN LA PIERRE

c/o NYPD 113th Precinct

167-02 Baisley Blvd.

Jamaica, NY 11434

POLICE OFFICER JOHN DOE #1

c/o NYPD 113th Precinct

167-02 Baisley Blvd.

Jamaica, NY 11434

POLICE OFFICER JOHN DOE #2

c/o NYPD 113th Precinct

167-02 Baisley Blvd.

Jamaica, NY 11434

POLICE OFFICER JOHN DOE #3

c/o NYPD 113th Precinct

167-02 Baisley Blvd.

Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DARRELL HUNTER,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, POLICE OFFICER JOHN
LA PIERRE, POLICE OFFICER JOHN DOE #1,
POLICE OFFICER JOHN DOE #2 and POLICE
OFFICER JOHN DOE #3,

Defendants.

-----X

Plaintiff, DARRELL HUNTER, by his attorneys, the Law Offices of Michael

Dreishpoon, complaining of the Defendants, alleges, upon information and belief, as follows:

THE PARTIES

1. At all times hereinafter mentioned, plaintiff, DARRELL HUNTER, was and still is a resident of the State of New York, Nassau County.
2. At all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a domestic municipal corporation duly organized and existing pursuant to the laws of the State of New York.
3. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN LA PIERRE (Shield #26864), was and still is a resident of the State of New York.
4. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN LA PIERRE, was and still is an employee of the CITY OF NEW YORK.
5. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE #1, was and still is a resident of the State of New York.
6. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE #1, was

and still is an employee of the CITY OF NEW YORK.

7. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE #2, was and still is a resident of the State of New York.
8. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE #2, was and still is an employee of the CITY OF NEW YORK.
9. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE #3, was and still is a resident of the State of New York.
10. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE #3, was and still is an employee of the CITY OF NEW YORK.
11. At all times hereinafter mentioned, all four above-named police officers were employed by the New York Police Department.
12. At all times hereinafter mentioned, all four above-named police officers acted within the scope of their employment under color of law.
13. At all times hereinafter mentioned, the defendants' acts constituted "state action."
14. Notwithstanding the wrongful and illegal nature of the individual defendants' acts, their conduct complained of was part and parcel of, and incidental to, the otherwise lawful performance of their duties.
15. Before the commencement of this action, and within ninety days of June 24, 2020, a Notice of Claim containing the information required by law was duly served upon CITY OF NEW YORK on September 8, 2020. On December 8, 2020, a hearing was held pursuant to GML § 50-h. More than thirty days have elapsed since the claims upon which this action is based were presented, and CITY OF NEW YORK has neglected and/or refused to make payment or adjustment thereof.

FIRST CAUSE OF ACTION:
FALSE ARREST

16. On June 24, 2020, Plaintiff attended a kindergarten graduation party at 119-51 165th St., Jamaica, NY 11434.
17. Plaintiff's friend, Kareem Stevenson, resides at that address with his family.
18. Many other people attended the party.
19. At approximately 2:00 P.M., Plaintiff was sitting in the living room with approximately three (3) other guests.
20. Many uniformed and plain-clothed NYPD officers descended upon the house in question.
21. At approximately 2:05 P.M., several of the police officers entered the house with guns drawn.
22. Upon information and belief, a heavy-set Caucasian officer gave a command to "cuff them."
23. Plaintiff's hands were cuffed behind his back.
24. None of the officers told Plaintiff why he was cuffed.
25. Soon thereafter Plaintiff was put into the back of a marked patrol vehicle.
26. Plaintiff was then transported to the 113th Precinct and placed in a cell.
27. Plaintiff was placed under arrest (Arrest #Q20616158).
28. No one told Plaintiff what the charges were against him.
29. On June 25, 2020, at approximately 5:00 A.M., Plaintiff was transported to Central Booking in Kew Gardens.
30. At approximately 6:30 P.M., Plaintiff received a piece of paper stating that "your arrest ... was dismissed." A copy of this letter is attached hereto as Exhibit A.

31. Soon thereafter, Plaintiff was released from custody.
32. The above-mentioned actions of the police officers were done without probable cause, just cause, reasonable grounds or provocation, and placed Plaintiff in imminent fear of unlawful touching.
33. The arrest and imprisonment of Plaintiff was caused by the defendants, their agents, servants and/or employees without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of committing a crime.
34. Plaintiff was wholly innocent of any criminal charges.
35. Defendants intended to arrest Plaintiff, Plaintiff was conscious of the arrest, Plaintiff did not consent to the arrest, and the arrest was not otherwise privileged.
36. By reason of the foregoing, Plaintiff was compelled to remain incarcerated for approximately twenty-eight (28) hours until he was released from custody.
37. By reason of the false arrest, Plaintiff was subjected to great indignities, humiliation and ridicule.
38. Defendants' conduct violated Plaintiff's rights under the Constitution of the State of New York, the Constitution of the United States of America, and 42 U.S. Code § 1983.
39. As a result of this false arrest, Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts of the State of New York.

SECOND CAUSE OF ACTION:
NEGLIGENCE

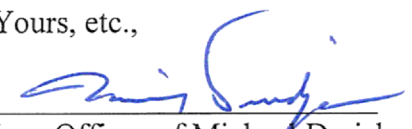
40. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

41. Defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of the officers in question, as well as in the training and conduct of said officers.
42. Defendant, CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline the police officers in question, with regard to their propensity for, inter alia, reckless, careless, and negligent conduct and for their failure to protect citizens from unconstitutional conduct.
43. Defendants' conduct violated Plaintiff's rights under the Constitution of the State of New York, the Constitution of the United States of America, and 42 U.S. Code § 1983.
44. The actions of the defendant officers complained of were part of the custom, practice, usage, regulation and/or direction of defendant, CITY OF NEW YORK.
45. The limitation on liability set forth in CPLR § 1601 does not apply by reason of one or more of the exemptions set forth in CLR § 1602.
46. As a result of the defendants' negligence, Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts of the State of New York.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on his First and Second Causes of Action, all together with the costs and disbursements of this action.

Dated: Forest Hills, NY
July 1, 2021

Yours, etc.,



Law Offices of Michael Dreishpoon
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

ss.:

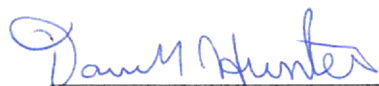
COUNTY OF QUEENS)

I, DARRELL HUNTER, being duly sworn, depose and say:

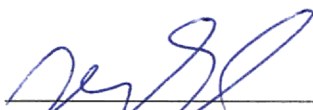
(1) I am the Plaintiff in the within action.

(2) I have read the foregoing Complaint and know that the contents thereof are true and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.


DARRELL HUNTER

Sworn to before me this
1st day of July, 2021



Notary Public

